

August 31, 2026
Dept. 9
Probate Tentative Rulings

10.	25PRO246	IN THE MATTER OF JOHN DAVID MCLLWAIN
FINAL DISTRIBUTION HEARING		

Letters of Administration were issued on November 10, 2025, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on July 14, 2026. At the time the inventory and appraisal was filed, the change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code, was filed.

Waivers of Account were executed by all the heirs entitled to distributions under the estate.

Proof of Service of Notice of the hearing on the Petition was filed on August 20, 2026. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate includes equal shares to James McIlwain and Ann McIlwain.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

3. That no federal or California estate taxes are payable or that they have been paid;
4. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

Petitioner confirms that no federal or California estate taxes are payable. All California and federal income taxes, personal property taxes, and real property taxes have been paid.

The Petition requests:

1. The administration of this estate be closed;
2. The First and Final Report and Petition of Petitioner presented herewith be approved;

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3. All acts, transactions, sales, and investments of the personal representative as reported herein be ratified, approved, and confirmed; (a) Acts consist of: collection of property, sale of real property;
4. The waiver of account is allowed and approved as filed;
5. Petitioner waives any statutory fee to which they are entitled to as Administrator;
6. Petitioner be authorized and directed to pay \$17,574.88 to the Law Offices of Daniel A. Hunt as statutory fees;
7. The property of the estate be distributed as set forth pursuant to this petition, in equal shares to the natural heirs of the estate, namely James McIlwain and Ann McIlwain, without further order of this Court;
8. Distribution of any other property of the decedent or the estate not now known or discovered be made in equal shares to the natural heirs of the estate, namely James McIlwain and Ann McIlwain, without further order of this Court; and
9. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #10:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, AUGUST 30, 2027, IN DEPARTMENT NINE BY WHICH TIME THE COURT EXPECTS RECEIPTS AND AN EX PARTE PETITION FOR FINAL DISCHARGE (JUDICIAL COUNCIL FORM DE-295) TO BE FILED WITH THE COURT. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.